



U.S. Department
of Transportation

Research and
Special Programs
Administration

400 Seventh Street, S.W.
Washington, D.C. 20590

DOT-E 9994 (EXTENSION)
ORIGINAL November 18, 1988

In accordance with 49 CFR 107.105 of the Department of Transportation (DOT) Hazardous Materials Regulations DOT-E 9994 is hereby extended for the party(ies) listed below by changing the expiration date in paragraph 10 to September 30, 1996. This change is effective from the issue date of this extension. All other terms of the exemption remain unchanged.

This extension applies only to party(ies) listed below based on the application(s) received in accordance with 49 CFR 107.105. This extension constitutes a necessary part of this exemption and must be attached to it.

for Marilyn E. Morris
Alan I. Roberts
Associate Administrator
for Hazardous Materials Safety

JUL 17 1996

(DATE)

Dist: FHWA

EXEMPTION HOLDER

APPLICATION DATE

Hoover Materials Handling Group, Inc.
Beatrice, NE

March 27, 1996



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DOT-E 9994

NOV 18 1988

1. Hoover Group, Inc., Beatrice, Nebraska, is hereby granted an exemption from certain provisions of this Department's Hazardous Materials Regulations to manufacture, mark, and sell the packaging described in paragraph 7 below for use in the transportation of the various hazardous materials described in paragraph 3 below in commerce subject to the requirements specified herein. This exemption authorizes the manufacture, marking and sale of a non-DOT specification stainless steel drum-type container of 55-gallon capacity, conforming to DOT Specification 5C - with certain exceptions - for shipment of those materials authorized in a DOT-5C stainless steel drum, and provides no relief from any regulation other than as specifically stated.

2. BASIS. This exemption is based on Hoover Group, Incorporated's application dated May 9, 1988, submitted in accordance with 49 CFR 107.103 and the public proceeding thereon.

3. HAZARDOUS MATERIALS (Descriptor and class). Hazardous materials presently authorized by 49 CFR Part 173 to be packaged in DOT Specification 5C stainless steel drums of 55-gallon capacity.

4. PROPER SHIPPING NAME (49 CFR 172.101). As specified in 49 CFR 172.101 for the specific chemical name or generic commodity description, as appropriate.

5. REGULATION AFFECTED. 49 CFR 178.83-7, 178.83-8.

6. MODES OF TRANSPORTATION AUTHORIZED. Motor vehicle.

7. SAFETY CONTROL MEASURES. Packaging prescribed is a non-DOT specification stainless steel drum-type container of 55-gallon capacity, in complete conformance with DOT Specification 5C except that instead of rolling hoops, a 16 gauge, 7-inch high protective skirt will be welded at the top head and a 16 gauge, 4 1/2-inch high protective footring will be welded at the bottom, in accordance with Hoover Group Drawing No. 317574, dated February 26, 1988.

Periodic drop and hydrostatic tests are not required when drum has satisfactorily met prescribed tests at start of production. Satisfactory test results must be obtained on samples of subsequent drums that have been altered in design or construction. Samples tested must be retained until further tests are performed, or for two years, whichever period is shorter.

8. SPECIAL PROVISIONS.

a. Shippers may use the packaging(s) covered by this exemption pursuant to 49 CFR 173.22a.

- b. A copy of this exemption, in its current status, must be maintained at each manufacturing facility at which this packaging is manufactured and must be made available to a DOT representative upon request.
 - c. Each packaging manufactured in accordance with the requirements of this exemption must be marked in a manner which identifies the physical location (city and state) of the facility at which it is manufactured.
 - d. In 49 CFR Part 173 certain materials in which the DOT 5C drum is authorized by the regulations have qualifying conditions which are applicable to the drum authorized under this exemption.
 - e. Each drum must be marked as specified in 49 CFR 178.83-11 except "DOT-E 9994" must be substituted for "DOT-5C".
9. REPORTING REQUIREMENTS. Any incident involving loss of contents of the package must be reported to the Office of Hazardous Materials Transportation (OHMT) as soon as practicable.

10. EXPIRATION DATE. September 30, 1990.

Issued at Washington, D.C.:



Alan I. Roberts
Director
Office of Hazardous Materials
Transportation

NOV 18 1988

DATE

Address all inquiries to: Director, Office of Hazardous Materials Transportation, Research and Special Programs Administration, U.S. Department of Transportation, Washington, D.C. 20590. Attention: Exemptions Branch.

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